

Rahul Seth v. State of U.P.

Allahabad High Court · Division Bench · 26 July 2022 · WRIT - C No. - 17544 of 2022 · **Writ disposed; clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A writ to quash a recovery certificate for electricity dues of Rs.5,23,852 and to compel a correct bill and a final assessment under clause 8.1(b) of the U.P. Electricity Supply Code, 2005 was disposed of without opinion on merits. On the licensee's statement that an objection would be decided in a time-bound manner, the Court granted liberty to object under clause 6.5 within four weeks, directed decision preferably within four weeks after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Rahul Seth petitioned the Allahabad High Court to quash a recovery certificate dated 28 July 2021 issued for Rs.5,23,852 as electric dues, and to compel the distribution licensee to issue a correct bill and a final assessment under paragraph 8.1(b) of the U.P. Electricity Supply Code, 2005, keeping recovery in abeyance meanwhile. Counsel for the Power Distribution Corporation stated that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy-to-writ

HOLDING

Without expressing any opinion on merits, a writ seeking quashing of a recovery certificate for electricity dues and a mandamus for a correct bill and final assessment under clause 8.1(b) is disposed of by granting liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after hearing, with coercive action stayed for a limited period. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the recovery certificate and seeking clause 8.1(b) assessment was not decided on merits; the consumer was relegated to a clause 6.5 objection before the distribution licensee. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed demand of Rs.5,23,852 under the recovery certificate dated 28.07.2021 was left to be examined on a clause 6.5 objection, to be decided after hearing within a time-bound period. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 28.07.2021 AND WHETHER A FINAL ASSESSMENT UNDER CLAUSE 8.1(B) WAS REQUIRED BEFORE THE DEMAND

Writ disposed without opinion on merits; those were the certiorari and mandamus prayers. ¶ 1